

24STCV33426 24STCV33426

County: los-angeles

Division: Civil Law and Motion

Department: 506

Hearing date: 2026-07-23

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Case Number: 24STCV33426 Hearing Date: July 23, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

DEAN ST JUDE ESPARZA,

Plaintiff,

vs.

GENERAL MOTORS, LLC,

Defendant.

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CASE NO.: 24STCV33426

[TENTATIVE] ORDER SUSTAINING THE
DEMURRER TO THE FIRST AMENDED COMPLAINT; GRANTING THE MOTION TO STRIKE THE
FIRST AMENDED COMPLAINT; AND, GRANTING THE MOTION TO COMPEL FURTHER RESPONSES
TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE)

Dept. 48

8:30 a.m.

DATE 7-23-26

On December 17,
2024, Plaintiff Dean St. Jude Esparza filed a complaint against Defendant
General Motors, LLC, for alleged defects in a 2021 Chevrolet Colorado vehicle
purchased or leased on February 26, 2022. On October 9, 2025, Plaintiff filed a first
amended complaint.

On October 15,
2025, Defendant filed a demurrer to the fifth cause of action for fraudulent
concealment, and a motion to strike the claim for punitive damages, within the
first amended complaint. The demurrer and motion to strike remain unopposed.

On August 18, 2025, Plaintiff filed a motion to compel further responses to request for production of documents numbers 1, 2, 3, 7, 8, 15, 16, 23, 24, 29, 30, 39, 40, 51, 52, 61, 62, 67, 68, 71, 72, 73, 74, 83, 84, 89, 91, 93, 100, 114, 115, 116, 117, 118, 119, 131, 132, 135, 136, 137, 138, and 141. On September 11, 2025, the court found an insufficient meet and confer effort based on the content within the 57-page separate statement and continued the hearing to November 25, 2025. The court ordered submission of a joint statement prior to the hearing. On November 17, 2025, the court rescheduled the motion to July 23, 2026. On November 18, 2025, Plaintiff submitted a unilateral declaration contending Defendant refuses to respond to Plaintiff's meet and confer efforts.

DEMURRER

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

The Fifth Cause of Action Does Not Allege Fraud with Specificity.

Defendant argues that the fifth cause of action does not allege sufficient facts, including a duty to disclose due to the lack of a transactional relationship. (Demurrer at pp. 3-6.)

Fraud based on concealment requires that "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311.)

An essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Id. at p. 314.) "There are 'four circumstances in which nondisclosure or concealment may constitute

actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from Plaintiff; and (4) when the defendant makes partial representations

but also suppresses some material facts.” (Id. at p. 311.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187 (Hoffman).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1256, 1384.)

Plaintiff alleges that Defendant knew about the transmission defects before Plaintiff purchased the vehicle. (First Amend. Comp., ¶¶ 11, 35, 65.) Because of the defect, “Plaintiff was harmed by purchasing a vehicle that Plaintiff would not have leased or purchased had Plaintiff known the true facts about the Transmission Defect. Furthermore, Plaintiff unknowingly exposed themselves [sic] to the risk of liability, accident and injury as a result of Defendant GM’s fraudulent concealment of the Transmission Defect.” (First Amend. Comp., ¶ 71.)

Plaintiff did not know about these defects and problems, and GM, who had superior knowledge of the defect, did not disclose the defects, when Plaintiff purchased or leased the vehicle. (First Amend. Comp., ¶¶ 66-69.). The allegations are specific enough to allege the information that was concealed and danger posed. (See Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199-1200.). However, Plaintiff does not allege facts showing the existence of a relationship between the parties that gives rise to a duty to disclose facts. (See Hoffman, supra, 228, Cal.App.4th at p. 1187.) Plaintiff alleges only that “GM was under a duty to Plaintiff to disclose the defective nature of the Subject Vehicle and its transmission, its safety consequences and/or the associated repair costs because ... Defendant GM acquired its knowledge of the Transmission Defect and its potential consequences prior to Plaintiff acquiring the vehicle, through sources not available to consumers such as Plaintiff. ...” (First Amend. Comp., ¶ 66(a).) “GM was in a superior position from various internal sources to know (or should have known) the true state of about the material defects in the vehicle equipped with the defective transmission.” (First Amend. Comp., ¶ 66(b).) There are no facts showing why GM’s knowledge was exclusive or that GM intended to defraud.

Moreover, in a transaction that does not involve fiduciary or confidential relations, the “transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at pp. 311-312.) Plaintiff alleges no such direct transaction and direct concealment with GM.

Plaintiff submits no opposition to the demurrer. The unopposed demurrer is sustained on this ground.

MOTION TO STRIKE

The court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. Code Civ. Proc., § 436, subd. (a-b).)

Defendant moves to strike Plaintiff’s prayer for punitive damages. (Motion at p. 2-5.) A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code, § 3294, subd. (a).). “The mere allegation an inattentional tort was committed is not sufficient to warrant and aware of punitive damages. [Citation.]. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (footnote omitted).) Additionally, a plaintiff is not entitled to recover both punitive and civil penalties under Song-Beverly. (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 228.)

The Court concurrently sustains the demurrer to the fraud cause of action, and there are no other specific facts showing oppression or malice.

The unopposed motion to strike is granted.

FURTHER
PRODUCTION OF DOCUMENTS

Following

the continuance of the hearing from September 11, 2025, to November 25, 2025, on November 17, 2025, the court again continued the hearing from November 25, 2025, to July 23, 2026. On November 18, 2025, instead of the ordered joint statement, Plaintiff submitted a declaration regarding a lack of response from GM. No further updates from the last seven months appears following the continuance. The court continues the hearing and orders a joint statement from both Plaintiff and GM regarding the outstanding remaining disputes, if applicable. The Court warns the parties, particularly the defendant, that continued failure to cooperate with the discovery process may result in the setting of an OSC to allow for consideration of sanctions, including issue and evidentiary sanctions.

CONCLUSION

The demurrer to
the fifth cause of action is SUSTAINED.

The motion to
strike is GRANTED.

The motion to
compel further responses to Request for Production of Documents is CONTINUED.

Defendant to give notice.

Parties who intend
to submit on this tentative must send an email to the Court at
 indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 23 day of July 2026

Hon. Thomas D.
Long

Judge of the Superior

Court